12. 9:00 AM CASE NUMBER: C25-02439
CASE NAME: CHANEL READER-JONES VS. MARJORIE RINKER
***MOTION/PETITION TO COMPEL ARBITRATION AND DISMISS OR STAY PROCEEDINGS**
FILED BY: RINKER, MARJORIE
****TENTATIVE RULING:****

The Court **continues** the motion to compel arbitration to April 30, 2026 at 9:00 a.m.

13. 9:00 AM CASE NUMBER: C25-02681
CASE NAME: 98 LA COLIMA LLC VS. PREMDIP DHOOT
HEARING IN RE: APPLICATION FOR RIGHT TO ATTACH ORDER AND ORDER FOR ISSUANCE OF WRIT
FILED BY: 98 LA COLIMA LLC
****TENTATIVE RULING:****

Before the Court are two applications by plaintiff, 98 La Colima, LLC, to attach property owned by defendant HD 2670 Walnut Blvd Member, LLC and individual defendant, Premdip S. Dhoot.

Background

Before the Court are two applications by plaintiff, 98 La Colima, LLC, to attach property of defendant, HD 2670 Walnut Blvd Member, LLC and its member and manager, defendant Premdip S. Dhoot.

This case arises from a loan by plaintiff to defendant, HD 2670 Walnut Blvd Member, LLC. On August 24, 2022, defendant Dhoot signed a promissory note on behalf of HD 2670 Walnut Blvd Member, LLC. The note was for the principal amount of $500,000, to be re-paid, along with an additional $120,821.92 “Lender’s Return,” by January 1, 2024 (“Maturity Date”). (See Declaration of Syed A. Ali in Support of Application for Right to Attach Order and Writ of Attachment, hereinafter “Ali Decl.,” Ex. 1 [Promissory Note] and Ex. 2 [Payment Guaranty].)

The complaint alleges five causes of action (though a numbering error might lead one to believe there are four): (1) Breach of Written Promissory Note, (2) Breach of Guaranty Agreement, (3) Account Stated, (3) Money Lent; and (4) Money Paid, Laid Out, and Expended. The second cause of action is alleged against Dhoot and the others are against HD 2670 Walnut Blvd Member, LLC.

Plaintiff contends defendants refuse to comply with their repayment obligations and intend to sell the properties it seeks to attach here. Plaintiff contends defendants are likely to conceal any proceeds from the sales to prevent plaintiff from levying on such proceeds. Plaintiff attaches an email sent on September 16, 2025 demanding payment by the next day at 5:00 p.m. Plaintiff then filed this action on September 18, 2025. (See Ali Decl., Ex. 3 [demand email].) In November 2025, plaintiff filed the present applications for right to attach order and order for writ of attachment. Each application is supported by a declaration by Syed A. Ali, plaintiff’s managing member.

With respect to HD 2670 Walnut Blvd Member, LLC, plaintiff seeks to attach 13 real properties and the following assets held in the name of the LLC: “real property, personal property, equipment, motor vehicles, chattel paper, negotiable and other instruments, securities, deposit accounts, safe deposit boxes, accounts receivable, and general intangibles.” With respect to Dhoot, plaintiff seeks to attach, “[a]ll real property, personal property, equipment, motor vehicles, chattel paper, negotiable and other instruments, securities, deposit accounts, safe deposit boxes, accounts receivable, and general intangibles” in Dhoot’s name.

The applications are opposed by defendants, who argue plaintiff has failed to meet its burden to establish probable validity of the claim and has not shown a risk of irreparable harm. Defendants further contend the value of the property sought to be attached exceeds the amount of plaintiff’s claim. Defendants generally agree with the background provided by plaintiff, including the amount of money loaned, the date loaned, and the terms of the documents.

Defendants argue that parties agreed to an oral modification of the Maturity Date after the project suffered significant schedule delays and setbacks. The alleged new date would be “after the Project was complete and the underlying property could be sold.” (Declaration of Premdip S. Dhoot in Support of Opposition, hereinafter “Dhoot Decl.,” ¶8.) Accordingly, defendants argue the alleged debt is not yet due, but they do not specify a specific new due date. Based on such purported modification, Dhoot argues there was no default on the promissory note that would trigger his liability on the personal guaranty.

At the time of this writing, the Court has not received a reply.

Exemptions

A defendant who opposes a right to attach order must give notice of his objection, “accompanied by an affidavit supporting any factual issues raised and points and authorities supporting any legal issues raised.” (Code Civ. Proc. § 484.060, subd. (a).) The defendant may make a claim of exemption with respect to his property in the opposition. (Code Civ. Proc. § 484.070.)

Here, Dhoot claims his personal property is exempt because it is not among the items listed in Code of Civil Procedure §487.010, subdivision (c) and amounts to less than $8,725. He also represents that he holds no title to any items listed in Code of Civil Procedure §487.010, subdivision (c).

The right to attachment of property owned by a natural person requires an adequate description. “Personal property” is insufficiently specific, as set forth in the opposition. Further, certain property plaintiff attempts to attach is not included in the list of attachable property in Code of Civil Procedure §487.010, subdivision (c), and is not properly listed in the application. Accordingly, in any proposed order, all references to “personal property,” “motor vehicles,” and “safe deposit boxes” shall be omitted from the description of property with respect to Dhoot.

Standard

Attachment is a pre-judgment creditor’s remedy. Generally, an order of attachment may be issued only in an action for a claim of money that is based upon an express or implied contract where the total amount of such claim is a fixed or readily ascertainable amount not less than $500. (Code Civ. Proc., § 483.010, subd. (a).) A plaintiff may obtain a right to attach if the plaintiff establishes the probable validity of plaintiff’s claim. (Code Civ. Proc. § 484.090, subd. (a)(2).) “A claim has ‘probable validity’ where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim.” (Code Civ. Proc. § 481.190; see also *Loeb & Loeb v. Beverly Glen Music, Inc.* (1985) 166 Cal.App.3d 1110, 1120; see *Kemp Bros. Construction, Inc. v. Titan Electric Corp.* (2007) 146 Cal.App.4th 1474, 1476.) The Court must also find that the attachment is not sought for a purpose other than the recovery on the claim upon which the request for attachment is based and that the amount to be secured by the attachment is greater than zero. (Code Civ. Proc. § 484.090.)

Discussion

The applications and supporting declarations adequately support the amount claimed and make all required representations to procure attachment. Plaintiff successfully demonstrates probable validity of its claims, and that the claims are ones upon which attachment is proper. (Code Civ. Proc., § 484.090(a)(1)-(2).) The attachment is not sought for purposes other than recovery on the claim, which amounts to a sum greater than zero. (*Id*. at (a)(3)-(4).)

Probability of Prevailing

Plaintiff demonstrates a probability of prevailing on its breach of contract claim. Defendants have raised a modification defense that involves an adjustment to the due date. The defense appears to be insufficient for four reasons. First, while a written contract may be modified by oral agreement in certain circumstances (including execution and where there is new consideration), there is insufficient evidence of such circumstances here. (Civ. Code, § 1698 (b)-(c).) Second, with respect to the purported modification, defendants do not address the statute of frauds (Civil Code, §1624), which would bar oral modification pursuant to subdivision (a)(7), which relates to contracts for more than $100,000, not subdivision (a)(1), relating to agreements not to be performed within a year, as argued by plaintiff. Third, while the promissory note is silent as to how the lender would extend the payment deadline (see Ali Decl., Ex. 1, §3), the guaranty requires modifications of the underlying documents to be in writing (Ali Decl., Ex. 2, ¶4.1).

Irreparable Harm

Defendants contend plaintiff fails to show "irreparable harm." Code of Civil Procedure, § 485.010 describes the "great or irreparable injury" prerequisite to obtaining attachment. The showing is satisfied where there is a danger that property may become unavailable. Such conditions exist where "[u]nder the circumstances of the case, it may be inferred that there is a danger that the property sought to be attached would be concealed, substantially impaired in value, or otherwise made unavailable to levy if issuance of the order were delayed until the matter could be heard on notice." (*Id*. at subd. (b)(1).)

This standard is satisfied here. While plaintiff presents no specific evidence that defendants intend to conceal funds or deprive plaintiff of an available source of recovery, defendants confirm in the opposition papers that some project properties have already been sold and the inferences permitted by the above-cited statute are sufficient.

Value of the Property Sought to be Attached

With respect to defendants' argument that they do not hold title to certain properties listed in the applications, and that the value of the properties sought to be attached exceeds the debt, their concerns are unfounded. Any property not owned by a particular defendant cannot be attached. Further, assuming such attachment leads to a lien, once the debt is satisfied, no further recovery would be warranted.

Undertaking

An undertaking is required prior to the issuance of a writ of attachment in order to pay the defendant for any wrongful attachment. (Code Civ. Proc., § 489.210.) Defendants argue the amount should be equal to the amount of the claimed debt ($712,459.23). Plaintiff responds that the defendants were required to show, through declarations, that the undertaking should be more than the statutory default, which is $10,000. (Code Civ. Proc., § 489.220 (a).)

Code of Civil Procedure, § 489.220 (b) states, the Court "shall" order an increased amount, but only where it finds “the probable recovery for wrongful attachment exceeds the amount of the undertaking.” Here, defendants do not dispute that there is a debt owed (or that will be owed) in the amount shown in the documents. It is thus not clear to the Court what the monetary consequence of wrongful attachment would be. Accordingly, the amount of the undertaking shall be $10,000 per defendant.

Conclusion

With respect to defendant Dhoot, subject to (1) the plaintiff posting an undertaking in the amount of $10,000 and striking “personal property,” “motor vehicles,” and “safe deposit boxes” from Attachment 9, the application is granted.

With respect to defendant HD 2670 Walnut Blvd Member, LLC, subject to plaintiff posting an undertaking in the amount of $10,000, the application is granted.

Any required judicial council forms shall be revised and re-submitted consistent with this ruling.

14. 9:00 AM CASE NUMBER: MS25-0288
CASE NAME: CLAYTON GARDENS VS. NATHAN PARSONS
***HEARING ON MOTION IN RE:**
FILED BY: PARSONS, NATHAN
TENTATIVE RULING:*

Defendant Nathan Parsons moves to vacate judgment entered after a court trial on February 23, 2026. The case has a rather lengthy—for an unlawful detainer proceeding—procedural history involving multiple trials and a federal bankruptcy action. On the day set for jury trial, Defendant failed to appear. He argues that he was in the hospital—for a limited stay of less than two hours—but he provides no proof of that visit, nor does he establish any diligence in notifying the Court or counsel of his condition before, during, or even immediately after he left the hospital. Instead, he waited two and a half weeks to file a motion. Defendant has failed to establish good cause for relief, under Code of Civil Procedure section 473(b). The Motion is **denied**.

15. 9:00 AM CASE NUMBER: MSC20-01999
CASE NAME: SANCHEZ VS ATHERSTONE FOODS, INC.
***HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY COURTROOM CLERK**
FILED BY:
TENTATIVE RULING:*

Based on the declaration of the Settlement Administrator, the Court concludes that the disbursement of PAGA and Class Action Settlement Funds is complete and directs the administrator to release the remaining attorneys’ fees.